

Justification & Approval For Other than Full and Open Competition

As a legislative branch agency, the Library is subject to the competition and advertising requirements of 41 U.S.C. § 6101. Like the Competition in Contracting Act and the FAR, 41 U.S.C. § 6101 does not require competition when a contracting officer certifies that only one source or brand-name item is available, when dictated by public exigency, or when otherwise authorized by law.

This document sets forth the justification and approval for award of a contract or order by means providing for other than full and open competition per 41 U.S.C. § 6101, LCR 7-210, and, as applicable, FAR 6.302, FAR 13.106-1, FAR 8.405, and FAR 16.505. Contracting without competition shall not be justified on the basis of a lack of advance planning or concerns related to availability of funds.

This form shall be used to support instances where competition will be limited to a single source, a limited number of sources, including where a brand name product is required.

Part 1 – Identification

1. Contracting Agency and Activity: Library of Congress, Chief Operating Officer/Library Enterprises Directorate/Business Enterprises Division

2. Nature of Action Being Approved

- ☒ Contract (or modification)
- ☐ LoC or Leg Branch Order (or modification)
- ☐ GSA Schedule or GWAC: Identify Schedule/Contract
- ☐ Other: Identify

Plan ID Number: 2026-CDS-0003

Contractor : Minaret Corp.

Estimated Value (Base and all options):

Period of Performance:

Base Year: Aug. 1, 2026-July 31, 2027

Option Year 1: Aug. 1, 2027-July 31, 2028

Option Year 2: Aug. 1, 2028-July 31, 2029

Option Year 3: Aug. 1, 2029-July 31, 2030

Option Year 4: Aug. 1, 2030-July 31, 2031

3. Description of Supplies or Services Required to Meet Library Needs

The Library requires the following supplies or services:

The Library requires Minaret® Licensing and Maintenance for the existing subscription database service, *Classification Web Plus*. The Classification Web Plus system contains the Library's Library of Congress Subject Headings (LCSH) and Library of Congress Classification system (LCC), as well as other vocabularies (i.e. LC Genre Form Terms, and Children and Young Adult headings). Minaret® developed the Classification Web Plus system for the Library. While the Library owns the Classification Web Plus source code, the Library must renew licenses with Minaret® to access their proprietary to maintain and enhance the system.

The Library has been using this software and support in a long-term, ongoing development of the Library's subscription-based product, *Classification Web Plus*. Minaret® software is the backbone of the product and has been extensively customized over the years to support requirements of both external customers with paid subscriptions as well as the unique requirements of Library staff to maintain workflows vital to the cataloging community, such as the monthly lists of new subject heading and classification numbers. No other vendor has the familiarity with this proprietary software and its customizations to maintain *Classification Web Plus* and provide technical support, documentation and upgrades to new versions of the software by August 1, 2026. No other substitutions are possible.

Part 2 – Program Office Justification & Approval

4. Authority for Contracting Without Competition

Over \$250,000

For this requirement over \$250,000, under FAR part 6, the basis for contracting without providing for full and open competition is:

- ☒ There is only one responsible source and no other supplies or services will satisfy Library requirements.
41 U.S.C. § 6101(b)(2)(C); FAR 6.302-1.
- ☒ Library's minimum needs can only be satisfied by contractor's unique capabilities or products. FAR 6.302-1(b)(1).
- ☐ Source controls copyrights, patents, raw materials, or secret processes cannot be acquired otherwise, or similar circumstances. FAR 6.302-1(b)(2).
- ☐ Other exception identified in FAR 6.302-1: Identify the exception

5. Rationale for Contracting Without Competition

We are authorized to limit competition on the basis of the citation in section 4 because:

The Library's Office of Business Enterprises provides the external library community and internal users with web access to the Library of Congress Classifications schedules, the Library of Congress Subject Headings (as well as related vocabularies), and the Library of Congress Name Authorities. Minaret Corporation is the only known owner and license-grantor for Minaret® software. Based on a Sources Sought posted on 2/13/26, Minaret® software is the only system that can maintain and support the Library of Congress Subject Headings (LCSH) and Library of Congress Classification system (LCC), as well as other vocabularies (i.e. LC Genre Form Terms, and Children and Young Adult headings). Minaret® is also the only system to have an editorial (proposal system) component. The proposal system is the pathway for the update of LCC and LCSH, as well as the other vocabularies, allowing these Library resources to be kept current and relevant. With input from Library staff as well as participating external libraries, the proposal system and the editorial process are key components to the library cataloging profession.

Minaret Corporation is the only contractor capable of maintaining and supporting Minaret® software without significant interruption to the operations of the Library's online classification system, and/or significant duplication of effort and cost to the Government (8 years and over [REDACTED]). Minaret® also owns the source code. Minaret® proprietary software is the only known software with the demonstrated capability to search, display, edit, and print both Library of Congress classification and subject records in the Machine-Readable Cataloging (MARC) format. Integral, unique features of the software, not available elsewhere, include the capability to display classification data in its hierarchical context as well as in MARC format, and to correlate Library of Congress Classification with Library of Congress Subject Headings, Name Authorities, Dewey Decimal numbers, National Library of Medicine Classification and several other bibliographic data fields. In addition, Minaret® software is the only known software with the capability to generate print-ready PDFs of the LC classification schedules as well as the LC subject headings. Minaret® software is the only known software that can generate and organize the monthly subject and classification lists which are vital to the external library community. These lists allow librarians to catalog using the latest subject heading and classification data. Without the ability to provide these lists using Minaret® software, the Library would fail to uphold its core value to "Articulate and exemplify library and information science best practices and be a national and international role model for all libraries."

Based on market research and the posted sources sought, the Library finds Minaret® software to be the only software system that will meet the Library's needs without significant interruption of the operations of the Library's online classification activities, and/or significant duplication of effort and cost to the Government. The requirement for license and software is justified because it ensures the continuity of operations within business functions in use within and outside of the Library.

6. Actions to Overcome Barriers to Competition Before Subsequent Contract Is Required

To increase competition, we will: Continue to monitor industry developments through research of vendor literature, attendance at professional conferences and exhibits, and ongoing professional communication with library system experts throughout the industry, to determine if there are any other contractors who can provide these same services. The Library will look for other viable cost-efficient options to see if other contractors can provide the required services.

7. Program Office Certification

I certify that the description of the Government's minimum needs, schedule requirements, and technical information that provide the basis for this justification are accurate and complete.

Name

____ Systems librarian _____
Title

Signature

____ 03/31/2026 ____
Date

PART 3 – CONTRACTING OFFICER DETERMINATIONS & CERTIFICATION

8. Efforts to Solicit from As Many Potential Sources As Practicable

Unless a justification is based on FAR 6.302-2, Unusual and compelling urgency, contracting officers shall post justifications for other than full and open competition, including brand name justifications, to the Contract Opportunities website on sam.gov (or eBuy for Brand Name Justifications under FAR Part 8) prior to requesting a proposal or otherwise entering into negotiations.

- ☐ Advance notice will be published in sam.gov for 15 days before a contract is awarded. FAR 5.203(a).
- ☒ Advance or concurrent notice will be published in sam.gov for a reasonable time for commercial items FAR 5.203(a) and 12.204(b).
- ☐ Advance notice will not be published because the action meets the following FAR exception:
- ☐ Notice would compromise national security. FAR 5.202(a)(1).
 - ☐ Unusual and compelling urgency; notice period would seriously injure Government. FAR 5.202(a)(2).
 - ☐ Expressly authorized or required to be made through another Government agency. FAR 5.202(a)(4).
 - ☐ Order will be placed against an IDIQ contract awarded under FAR 16.5. FAR 5.202(a)(6).
 - ☐ Order will be placed against GSA schedule or other competitively-awarded contract. FAR 5.202(a)(11).
 - ☐ Other:
- ☐ Advance notice will not be published per 41 U.S.C. § 6101; see attached deviation from the FAR per LCR 7-210 § 3.A.

We made the following efforts to interest potential sources in this award: A sources sought notice was posted to SAM.gov on February 3, 2026 for a period of 14 days. Four responses were received. Two respondents indicated they would be interested in viewing the solicitation once it was issued. The remaining two respondents provided capability statements. The COR reviewed the capability statements and determined that none of the responding vendors demonstrated the capability to meet the Library's requirements.

9. Listing of Sources That Expressed Interest in Writing

The following sources expressed interest in this award: Four vendors expressed interest, BHPE LLC, CLSS Studio LLC, JGraphic, and Sentinele Systems LLC. However, none of these interested parties demonstrated the capability to meet the Library's requirements.

10. Additional Information

The following additional information is relevant to this justification and approval: N/A

11. Contracting Officer Determination that Price Is Fair and Reasonable

As explained in detail below, I have determined that the prices for this contracting action are fair and reasonable based on comparison of the prices to the following (see FAR 15.404-1(b)(2)):

- | | |
|---|--|
| ☒ Historical prices paid by the Government | ☐ Published competitive price lists |
| ☒ Library's Independent Government Estimate | ☐ Prices obtained through market research |
| ☐ Other: | ☐ Prices obtained through competitive proposals |

The following analysis (based on attached pricing information) supports my determination:

12. Contracting Officer Determination of Responsibility

- ☒ Checked System for Award Management (or will check in the case of competitive proposals for a brand name product)

13. Contracting Officer Determination of Best Value

I have determined that this action represents the best value to the Government because: Best Value will be determined at the time of award and documented in the CRB memo.

14. Contracting Officer Certification

I certify that, to the best of my knowledge and belief, this justification is accurate and complete. For those actions up to \$750,000, I approve contracting without competition for this requirement.

[Redacted]

Name

[Redacted]

Signature

3/31/2026

Date

Part 4 – Competition Advocate Approval
(Required for actions valued at greater than \$750,000)

☒ **Approved.** Based on the information, determinations, and certifications provided by the program office and the contracting officer, and in accordance with the instructions below, I approve contracting without competition for this requirement.

Option periods:

☐ No

☒ Yes, four option periods through July 31, 2031

☐ **Not Approved.** As explained below, I do not approve contracting without competition for this requirement.

Comments or instructions:

Name

Assist/Assoc General Counsel
Title

Signature

Date